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IN THE HIGH COURT OF ORISSA AT CUTTACK

A.F.R.

W.P.(C) No.5705 of 2025

(In the matter of an application under Article 226 of the Constitution of India)

Subhranshu Mohan Dash … **Petitioner**

-versus-

State of Odisha and others … **Opposite Parties**

Advocate(s) appeared in this case:-

For Petitioner : Mr.L.K.Maharana, Advocate

For Opposite Parties : Mr.T.K.Dash, AGA

CORAM: JUSTICE B.P. ROUTRAY

JUDGMENT
9th July 2026

B.P. Routray, J.

1. The Petitioner is the proprietor of a Clinical Establishment operating at Bhubaneswar. He has filed present writ petition challenging the order of Original Authority and the Appellate Authority rejecting his prayer for renewal of license under the Pre-Conception and Pre-Natal Diagnostic Techniques (Prohibition of Sex Selection) Act, 1994 (hereinafter referred as "PC & PNDT Act") and the Pre-Conception and Pre-Natal Diagnostic Techniques (Prohibition of Sex Selection) Rules, 1996 (hereinafter referred to as

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"PC & PNDT Rules"), with further prayer for renewal of his license under the said Act.

2. Heard Mr. L.K.Maharana, learned counsel for the Petitioner and Mr. T.K.Dash, learned Additional Government Advocate for the State-Opposite Parties.

3. The case of the Petitioner is that, he initially registered the establishment under the Odisha Clinical Establishment Act, 1990 in the year 2007 as per the Registration Certificate dated 13th August 2007 at Annexure-1. Then it has obtained the Registration Certificate under the PC & PNDT Act on 19th December 2011 at Annexure-2, which was valid till 19th December 2016, i.e. for a period of five years. Before expiry of said license under the PC & PNDT Act, the Petitioner applied for its renewal within the statutory period. But, the same was not considered till expiry of license and till such further statutory period prescribed under the PC & PNDT Rules and thereby the renewal was deemed to be continued by operation of the deeming provision under Rule 8(6) of PC & PNDT Rules. While continuing as such, under the deeming provision of renewal, a show cause notice was issued to him on 16th January

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2020 calling upon to reply within three days as to why the application for renewal shall not be rejected. The Petitioner submitted his reply on the next date, i.e. on 17th January 2020. However, the same was kept pending consideration before the Authority for more than one year and finally on 23rd February 2021 the Authority rejected his prayer for renewal of license without granting any opportunity of hearing.

4. The Petitioner preferred an appeal against the order of the Original Authority and after much persuasion, the same was finally disposed of on 10th December 2024 as per the order at Annexure-27, which is impugned in present writ petition.

5. The State-Opposite Parties have filed counter affidavit reiterating the stand taken in the impugned order to reject the prayer of the Petitioner mainly on the ground that the Petitioner did not possess a valid Clinical Establishment License in his favour. Further, it is stated in the impugned order that since the criminal case is pending against the Petitioner for violation of the provisions of the PC & PNDT Act & Rules, the prayer for renewal of his license under the Act cannot be granted.

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6. The principal grounds taken by the Petitioner to challenge the impugned order under Annexure-27 are that, *first*, the Collector-Cum-District Appropriate Authority has not given due opportunity of hearing to the Petitioner in terms of the provisions contained in Rule 8 (3) of the PC & PNDT Rules, *secondly*, he has a valid license under the Odisha Clinical Establishment Act throughout the period, *and thirdly*, the criminal case, which was instituted against the Petitioner in the year 2024, is the consequence of the rejection order of Original Authority ('DAA') and thus, technically cannot be treated as a case registered for violation of the provisions of the PC & PNDT Act and Rules.

7. Rule 8 of PC & PNDT Rules reads as follows:

> "**8. Renewal of registration**.-(1) An application for renewal of certificate of registration shall be made in duplicate in Form A, to the Appropriate Authority thirty days before the date of expiry of the certificate of registration. Acknowledgement of receipt of such application shall be issued by the Appropriate Authority in the manner specified in sub-rule (2) of Rule 4.
>
> (2) The Appropriate Authority shall, after holding an enquiry and after satisfying itself that the applicant has complied with all the requirements of the Act and these rules and having regard to the advice of the advisory Committee in

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this behalf, renew the certificate of registration, as specified in Form B, for a further period of five years from the date of expiry of the certificate of registration earlier granted.

(3) If, after enquiry and after giving an opportunity of being heard to the applicant and having regard to the advice of the Advisory Committee, the Appropriate Authority is satisfied that the applicant has not complied with the requirements of the Act and these rules, it shall, for reasons to be recorded in writing, reject the application for renewal of certificate of registration and communicate such rejection to the applicant as specified in Form C.

(4) The fees payable for renewal of certificate of registration shall be one-half of the fees provided in sub-rule (1) of Rule 5.

(5) On receipt of the renewed certificate of registration in duplicate or on receipt of communication or rejection of application for renewal, both copies of the earlier certificate of registration shall be surrendered immediately to the Appropriate Authority by the Genetic Counselling Centre, Genetic Laboratory or Genetic Clinic, Ultrasound Clinic or Imaging Centre.

(6) In the event of failure of the Appropriate Authority to renew the certificate of registration or to communicate rejection of application for renewal of registration within a period of ninety days from the date of receipt of application for renewal of registration, the certificate of registration shall be deemed to have been renewed."

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8. Bare perusal of the aforesaid sub-rule 3 reveals that after inquiry and after giving an opportunity of being heard to the applicant, the authority for the reasons to be recorded in writing may reject the renewal certificate of registration.

9. In the present case, as stated earlier, notice was sent to the Petitioner on 16th January 2020 and the Petitioner has already been submitted his reply on the next date, i.e. on 17th January 2020. It is true that after submission of reply by the Petitioner he was not invited to participate in the hearing proceeding and this part of allegation of the Petitioner is never denied by the Opposite Parties in their counter. Further, the order of DAA under Annexure-14 series does not reveal anything to suggest that the applicant was granted any personal hearing before the order of rejection was passed.

10. Mr. Dash, learned AGA submits on his part that issuance of notice to the applicant and submission of reply by the Petitioner is in compliance to sub-rule 3 of Rule 8 to understand that opportunity of hearing has been granted. He further submits in course of hearing that, a show cause notice was issued to the Petitioner, which he had

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replied and therefore, it would be incorrect to say that no opportunity of hearing was granted to the Petitioner. It is to be stated at the cost of repetition that the words used in sub-rule 3 of Rule 8 are "opportunity of being heard". This phrase "opportunity of being heard" is very important and considered as a substantial right of natural justice.

11. In ***Sakuntala Garabadu and others vrs. State of Orissa and others, 1986 (1) OLR 631***, this Court, while dealing with the provisions of Section 91(1) of the Odisha Development Authorities Act, have explained that in such situation opportunity should be real and reasonable and the person concerned should be dealt with in a manner as just and fair. It is explained as follows:

> "4. Having regard to the contentions raised in the writ application, the short question that arise for consideration is if the petitioners were prejudiced by denial of an enquiry which they specifically sought and prayed for? The petitioners had categorically made the assertions in paragraph 3(m) of the writ application that despite their specific and clear prayer for an enquiry having regard to the contentious issues in the show cause as per Annexure-9, no opportunity was afforded to them for taking part in the hearing. No enquiry was

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made to ascertain whether there had ever been any violation of the Act. Had an opportunity been given to them, they could have satisfied the prescribed authority that no infringement had been made and no action was called for. There is no traverse of the aforesaid allegations in the return submitted by the opposite parties 2 and 3. In the return the opposite parties have asserted that there were constructions by the petitioners even after the Act came into force. The question is if before an order was passed to the prejudice of the petitioners, they should have been given reasonable opportunity.

Proviso to Section 91(1) of the Act obligates the development authority to give reasonable opportunity to the owner or person concerned to show cause. It reads as under:

> "91(1).
>
> "Provided that no such order shall be made unless the owner or the person concerned has been given a reasonable opportunity to show cause why the order should not be made."

It is not disputed that the petitioners were called upon to show cause and show causes were filed. But were the petitioners entitled to personal hearing was the authority obligated to hold an enquiry? No hard and fast rule can be laid down. It would depend on facts and circumstances of each case. But the touch-stone is that the opportunity should be real and reasonable and the

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owner or person concerned should be dealt with in a manner just and fair In particular case after show cause is filed further enquiry may not be necessary, namely, for example when allegations are admitted. Where the owner or the person concerned has refuted the allegations that any unauthorised development/construction had been done by him as alleged and where disputed questions of fact are Involved upon resolution of Which would turn the decision, it is imperative That such contentious issues, disputed questions are resolved by an enquiry into the questions involved at which the owner or person concerned is given an opportunity to disprove the all questions or to establish his case. It is not enough that an opportunity to show cause, is given and show cause is filed. Where facts and circumstances, cry aloud for any enquiry for (resolution of disputed and contentious, issues of fact, absence of enquiry at the original stage would not be just and fair. Even though the provision does not specifically enjoin an enquiry, depending upon the facts and circumstances, opportunity of hearing at an enquiry would be read into the provision. It should be kept in mind that an order under Section 91(1) has serious consequences for the owner or person concerned."

12. Further, in ***Kesar Enterprises Ltd. Vs- State of U.P., AIR 2011 SC 2709***, it has been stated that,

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"17. Rules of "natural justice" are not embodied rules. The phrase "natural justice" is also not capable of a precise definition. The underlying principle of natural justice, evolved under the common law, is to check arbitrary exercise of power by the State or its functionaries. Therefore, the principle implies a duty to act fairly i.e. fair play in action. As observed by this Court in A.K. Kraipak & Ors. Vs. Union of India & Ors. the aim of rules of natural justice is to secure justice or to put it negatively to prevent miscarriage of justice. These rules can operate only in areas not covered by any law validly made. They do not supplant the law but supplement it. (Also see Income Tax Officer & Ors. Vs. M/s Madnani Engineering Works Ltd., Calcutta).

18. In Swadeshi Cotton Mills Vs. Union of India R.S. Sarkaria, J., speaking for the majority in a three-Judge Bench, lucidly explained the meaning and scope of the concept of "natural justice". Referring to a catena of decisions, his Lordship observed thus:

> "Rules of natural justice are not embodied rules. Being means to an end and not an end in themselves, it is not possible to make an exhaustive catalogue of such rules. But there are two fundamental maxims of natural justice viz. (i) audi alteram partem and (ii) nemo judex in re sua. The audi alteram partem rule has many facets, two of them being (a) notice of the case to be met; and (b) opportunity to explain. This rule cannot be sacrificed at the altar of administrative convenience or celerity. The general principle--as distinguished from an absolute rule of uniform application—seems to be that where a statute does not, in

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terms, exclude this rule of prior hearing but contemplates a post-decisional hearing amounting to a full review of the original order on merits, then such a statute would be construed as excluding the audi alteram partem rule at the pre-decisional stage. Conversely if the statute conferring the power is silent with regard to the giving of a pre-decisional hearing to the person affected and the administrative decision taken by the authority involves civil consequences of a grave nature, and no full review or appeal on merits against that decision is provided, courts will be extremely reluctant to construe such a statute as excluding the duty of affording even a minimal hearing, shorn of all its formal trappings and dilatory features at the pre-decisional stage, unless, viewed pragmatically, it would paralyse the administrative process or frustrate the need for utmost promptitude. In short, this rule of fair play must not be jettisoned save in very exceptional circumstances where compulsive necessity so demands. The court must make every effort to salvage this cardinal rule to the maximum extent possible, with situational modifications. But, the core of it must, however, remain, namely, that the person affected must have reasonable opportunity of being heard and the hearing must be a genuine hearing and not an empty public relations exercise."

(Emphasis added)

19. In Canara Bank Vs. V.K. Awasthy the concept, scope, history of development and significance of principles of natural justice have been discussed in extenso, with reference to earlier cases on

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the subject. Inter alia, observing that the principles of natural justice are those rules which have been laid down by the courts as being the minimum protection of the rights of the individual against the arbitrary procedure that may be adopted by a judicial, quasi-judicial and administrative authority while making an order affecting those rights, the court said:

> "Concept of natural justice has undergone a great deal of change in recent years. Rules of natural justice are not rules embodied always expressly in a statute or in rules framed thereunder. They may be implied from the nature of the duty to be performed under a statute. What particular rule of natural justice should be implied and what its context should be in a given case must depend to a great extent on the fact and circumstances of that case, the framework of the statute under which the enquiry is held."

20. The question with regard to the requirement of an opportunity of being heard in a particular case, even in the absence of provisions for such hearing, has been considered by this Court in a catena of cases. However, for the sake of brevity, we do not propose to refer to all these decisions. Reference to a recent decision of this Court in Sahara India (Firm), Lucknow Vs. Commissioner of Income Tax, Central-I & Anr. would suffice. In that case, the question for adjudication was whether in the absence of a provision in the Income Tax Act, 1961, an opportunity of hearing was required to be given to an assessee before an order under Section 142(2-A) of the said Act, directing special audit of his accounts was passed? A Bench of three Judges, speaking through one of us (D.K. Jain, J.), explaining the concept of

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"natural justice" and the principles governing its application, summed up the legal position as under :

> "Thus, it is trite that unless a statutory provision either specifically or by necessary implication excludes the application of principles of natural justice, because in that event the court would not ignore the legislative mandate, the requirement of giving reasonable opportunity of being heard before an order is made, is generally read into the provisions of a statute, particularly when the order has adverse civil consequences for the party affected. The principle will hold good irrespective of whether the power conferred on a statutory body or tribunal is administrative or quasi-judicial.
>
> We may, however, hasten to add that no general rule of universal application can be laid down as to the applicability of the principle audi alteram partem, in addition to the language of the provision. Undoubtedly, there can be exceptions to the said doctrine. Therefore, we refrain from giving an exhaustive catalogue of the cases where the said principle should be applied. The question whether the principle has to be applied or not is to be considered bearing in mind the express language and the basic scheme of the provision conferring the power; the nature of the power conferred and the purpose for which the power is conferred and the final effect of the exercise of that power. It is only upon a consideration of all these matters that the question of application of the said principle can be properly determined."

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> 21. Having considered the issue, framed in para 12 supra, on the touchstone of the afore-noted legal principles in regard to the applicability of the principles of natural justice, we are of the opinion that keeping in view the nature, scope and consequences of direction under sub-rule (7) of Rule 633 of the Excise Manual, the principles of natural justice demand that a show-cause notice should be issued and an opportunity of hearing should be afforded to the person concerned before an order under the said Rule is made, notwithstanding the fact that the said Rule does not contain any express provision for the affected party being given an opportunity of being heard. Undoubtedly, action under the said Rule is a quasi-judicial function which involves due application of mind to the facts as well as to the requirements of law. Therefore, it is plain that before raising any demand and initiating any step to recover from the executant of the bond any amount by way of penalty, there has to be an adjudication as regards the breach of condition(s) of the bond or the failure to produce the discharge certificate within the time mentioned in the bond on the basis of the explanation as also the material which may be adduced by the person concerned denying the liability to pay such penalty. Moreover, the penalty amount has also to be quantified before proceedings for recovery of the amount so determined are taken. In our view, therefore, if the requirement of an opportunity to show-cause is not read into the said Rule, an action thereunder would be open to challenge as violative of Article 14 of the Constitution of India on the ground that the power conferred on the competent authority under the provision is arbitrary."

13. In ***State of Orissa vs- Dr. (Miss) Binapani Dei, AIR 1967 SC 1269***, it is held that, every authority which has the power to take punitive or damaging action has a duty to give a reasonable opportunity to be heard. The Hon'ble Apex Court further held that

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an administrative action which involves civil consequences must be made consistent with the rules of natural justice:

14. Here, in the instant case, it is the plenary action taken against the Petitioner refusing his prayer for renewal on certain deficiencies which he disputes. In his show cause reply, the Petitioner has categorically denied all such allegations made in the notice. So it appears that there is a contradiction and confrontation to the allegations levelled against the Petitioner. If these specific facts in the present case at hand are considered as a whole, the authorities are required to grant an opportunity of hearing to the Petitioner before taking final decision on the allegations. The other interesting factor is that the authority did not proceed immediately after the show cause notice and reply was received thereto, but waited for more than one year to reject the prayer of the Petitioner based on his reply given in the show cause reply. Thus, it is felt on the part of a prudent man that when the statute prescribes for grant of opportunity of being heard, the Petitioner should have been granted due opportunity of personal hearing, specifically in the backdrop of the present case, before taking final decision upon the show cause notice to reject his prayer for renewal. Thus, in the opinion of this

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Court, the Petitioner has not been granted due opportunity of being heard before rejecting his prayer for renewal, and on this score alone, the impugned order is unsustainable.

15. Coming to the next point that whether the Petitioner possessed a valid license under the Odisha Criminal Establishment Act for that relevant period, it is clear from Annexure-1 series that his license in shape of Registration Certificate with Registration No.714/07, was valid up to 12th August 2025. Thus, the petitioner is found justified in his contentions that the Authorities did not consider his submissions correctly to say that he did not have a valid registration certificate under the Odisha Clinical Establishment Act. Here, it needs to be mentioned that had the Appellate Authority would have granted a personal hearing to the Petitioner, it would have been made clear by the Petitioner and the Authority would not have been in a misconception that the Petitioner did not possess a valid registration or license under the Odisha Clinical Establishment Act.

16. For the next submission as stated in the impugned order of the Appellate Authority that there is a criminal case pending against

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the Petitioner for violation of the provisions of PC & PNDT Act and Rules, admittedly 2(c)CC Case No.38 of 2024 has been instituted against the Petitioner on the allegations of violating the provisions of PC & PNDT Act and Rules. It is stated by the Petitioner in course of hearing that in said criminal case, learned trial court has taken cognizance against the Petitioner. Nonetheless, it needs to be stated here that on the initial date of rejection by the DAA, no such criminal case was pending against the Petitioner though it is admitted that the criminal case was pending against the performing doctor as on 23rd February 2021, i.e. when the rejection order was passed by the DAA. It needs to be further stated here that, as per the submissions of the Petitioner, a criminal case in 2(c)CC No.327 of 2021 was subsequently instituted against the Petitioner much after the rejection order was passed by the DAA. The criminal case initiated against the performing doctor namely, Bipini Bihari Panigrahi and the Petitioner were subsequently quashed by the High Court on 31st November 2022 in CRLMC No.1664 of 2021 and CRLMC No.172 of 2017 as per the submissions made on behalf of the Petitioner. The fact that subsequent registration of criminal case against the Petitioner in 2(c)CC No.38 of 2024, where the

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cognizance is stated to have taken against the Petitioner, is admitted and the same is pending against the Petitioner as on date. Therefore, the reasons stated by DAA regarding pendency of the criminal case against the performing doctor and pendency of the criminal case against the Petitioner as stated by the Appellate Authority in the impugned order, are not found as genuine grounds against the Petitioner to reject his application for renewal. It is for the reason that as per the PC & PNDT Act and Rules, no criminal case should be against the applicant or the holder of the license under the PC & PNDT Act. It would be immaterial for the purpose of renewal of license in favour of the Establishment if any criminal case is pending against any of the performing doctor for which separate provisions have been provided in the Act and Rules. Thus, it is seen that on the date of rejection of the prayer for renewal of the Petitioner by the DAA, there was no criminal case pending against the Petitioner, who was the applicant and the criminal case pending against the applicant as observed by the Appellate Authority was instituted in the year 2024. As such, both the orders of the DAA and the Appellate Authority under Annexures-14 series and 27 cannot be allowed to stand on this ground.

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17. As per the discussions made above and for the reasons stated, the impugned orders dated 23rd February 2021 of the DAA and the Appellate Authority dated 10th December 2024 under Annexure-27 are set aside particularly for not granting due opportunity of being heard to the Petitioner. At the same time, taking note of the fact that 2(c)CC No.38 of 2024 is pending against the Petitioner presently and cognizance has been taken thereof by the learned trial court, any fresh prayer of the Petitioner to allow his renewal application cannot be granted in the present circumstances. Thus, this Court though directs that the impugned orders of the DAA and the Appellate Authority are set aside, but no fresh prayer for renewal of the Petitioner can be considered till pendency of the criminal case against him.

18. The writ petition is accordingly disposed of.

(B.P. Routray)
Judge

C.R.Biswal, A.R.-cum-Sr.Seretary
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